

24SMCV00048 24SMCV00048

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-22

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

22, 2026

CASE NUMBER

24SMCV00048

MOTION

Motion

for Leave to Amend Cross-Complaint

MOVING PARTY

Defendant

and Cross-Complainant Fairmount 16, LLC

OPPOSING PARTIES

Cross-Defendants

Howard Altman, as Trustee of the Big Norm Trust Dated March 23, 2013; Nina Jacobson; and Jennifer Bleakley

MOTION

On January 4, 2024, Plaintiffs Marcus Rosner and Jill D. Rosner ("Plaintiffs" or "the Rosners") filed the operative Verified Complaint against Defendants Fairmount 16 LLC ("Fairmount") and Howard Altman, individually and as trustee of the Big Norm Trust dated March 23, 2013 ("Altman") alleging four causes of action for (1) negligence; (2) nuisance; (3) trespass; and (4) preliminary and permanent injunction.

On April 15, 2024, contemporaneous with its Answer, Fairmount filed a cross-complaint against Altman for indemnity/contribution.

On October 27, 2025, pursuant to stipulation, Fairmount filed its First Amended Cross-Compliant ("FAXC") against Altman for (1) indemnity; (2) contribution; (3) nuisance; (4) negligence; and (5) tort of another, subsequently substituting Cross-Defendants Nina Jacobson and Jennifer Bleakley as Roes 1 and 2, respectively.

On May 22, 2026, Fairmount electronically filed a Second Amended Cross-Complaint ("SAXC") against Altman, Jacobson, and Bleakley ("Cross-Defendants"), alleging six causes of action for (1) indemnity; (2) contribution; (3) nuisance; (4) negligence; (5) tort of another; and (6) injunctive relief.

On August 10, 2026, the Court struck Fairmount's Second Amended Complaint, finding it not filed in conformity with the law, and denied Fairmount's motion for leave to file the Second Amended Cross-Complaint ("SAXC") on procedural grounds without prejudice to Fairmount filing a renewed motion for leave to file the SAXC.

Fairmount now files its renewed motion for leave to file the SAXC. Cross-Defendants Altman, Jacobson, and Bleakley ("Cross-Defendants") oppose the motion and Fairmount replies.

LEGAL

STANDARD

Amendments

to Pleadings: General Provisions

Under Code of Civil Procedure

section 473, subdivision (a)(1), "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

To wit, without notice to the other

party the Court has wide discretion to allow either party (i) to add or strike the name of a party or (ii) to correct a mistake in the name of a party or a mistake in any other respect "in furtherance of justice" and "on any terms as may be proper." (See Code Civ. Proc., § 473, subd. (a)(1); see also *Marriage of Liss* (1992) 10 Cal.App.4th 1426, 1429.) Alternatively, after notice to the other party, the Court has wide discretion to allow either party to amend pleadings "upon any terms as may be just." (See Code Civ. Proc., § 473, subd. (a)(1). Similarly, Code of Civil Procedure section 576 states "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."

Judicial policy favors resolution of

all disputed matters between the parties and, therefore, leave to amend is liberally granted. (*Berman vs. Bromberg* (1986) 56 Cal.App.4th 936, 945; *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489 [this has been an established policy in California since 1901] (citing *Frost v. Whitter* (1901) 132 Cal. 421, 424; *Thomas v. Bruza* (1957) 151 Cal.App.2d 150, 155).) The Court of Appeal in *Morgan v. Superior Court* held "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court* (1959) 172

Cal.App.2d 527, 530, citations omitted.) Moreover, “it is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 [opposing party did not establish harm by the delay in moving to amend the complaint].)

“The court may grant leave to amend the pleadings at any stage of the action.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 6:636 (hereafter Weil & Brown).) Denial of a motion to amend is rarely justified if the motion is timely made and granting the motion will not prejudice the opposing party. (Id. at ¶ 6:639, citations omitted.) However, if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (Id. at ¶ 6:655, citations omitted. Absent prejudice, any claimed delay alone is not grounds for denial. “If the delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case even if sought as late as the time of trial. (Id. at ¶ 6:653 (citing *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565).) “Prejudice exists where the amendment would result in a delay of trial, along with loss of critical evidence, added costs of preparation, increased burden of discovery, etc. . . . But the fact that the amendment involves a change in legal theory which would make admissible evidence damaging to the opposing party is not the kind of prejudice the court will consider.” (Weil & Brown, *supra*, at ¶ 6:656, citations omitted.)

“Even if some prejudice is shown, the judge may still permit the amendment but impose conditions, as the Court is authorized to grant leave ‘on such terms as may be proper.’” (Weil & Brown, *supra*, at ¶ 6:663, citation omitted.) For example, the court may cause the party seeking the amendment to pay the costs and fees incurred in preparing for trial. (Id. at ¶ 6:664 (citing *Fuller v. Vista Del Arroyo Hotel*, 42 Cal.App.2d 400, 404).)

California

Rules of Court, rule 3.1324: Procedural Requirements

Pursuant to California Rules of

Court, rule 3.1324(a), a motion to amend a pleading before trial must:

“(1) Include a copy of the proposed amendment or amended pleadings, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

In addition, under Rule 3.1324(b), a motion to amend a pleading before trial must be accompanied by a separate declaration that specifies the following:

“(1) the effect of the amendment;

(2) why the amendment is necessary and proper;

(3) when the facts giving rise to the amended allegations were discovered; and

(4) the reasons why the request for amendment was not made earlier.”

DISCUSSION

In support of its request for leave, Fairmount 16 advances the Declaration of Michael I. Kehoe, which indicates as follows:

2. True and correct copies of the excerpts from the February 2, 2026 deposition of Defendant and Cross-Defendant Howard Altman (“Altman”) are attached hereto as Exhibit “A” and incorporated herein by reference.

3. Key information regarding Cross-Defendants Nina Jacobson (“Jacobson”) and Jennifer Bleakley (“Bleakley”) was gleaned from Altman’s deposition, as noted in the deposition excerpts attached as Exhibit “A” hereto. For example, Altman testified, among other things, that:

- Jacobson and Bleakley created the Big Norm Trust “for privacy purposes,” meaning that they wanted to keep their names off public records. Altman confirmed that, “In this case, for purposes of privacy, my name sits on public records and documents so that our clients’ name is not on it.” (Altman Depo., p. 11:11-16 and p. 51:21-23.) (Ex. “A” hereto.)
- When asked, “So is your testimony that you were just the trustee to provide anonymity, and your firm in effect provided bookkeeping services?” Altman responded: “Yeah. I think that’s a fair way to state it.” (Altman Depo., p. 51:25- 52:3.) (Ex. “A” hereto.)
- Jacobson and Bleakley are the only beneficiaries of the Big Norm Trust. (Altman Depo., p. 9:23-24.) (Ex. “A” hereto.)
- Even though he is technically the Trustee of the Big Norm Trust, Altman does not have any role in the construction project involving the Jacobson/Bleakley/Altman Property. (Altman Depo., p. 11:17-20 and p. 12:15- 20.) (Ex. “A” hereto.)
- Altman has not met in person with Jacobson or Bleakley for 1-2 years. (Altman Depo., p. 10:14-15.) (Ex. “A” hereto.)
- Altman has only spoken with Jacobson and Bleakley by any method “probably once or twice a year.” (Altman Depo., p. 10:20-11:1.) (Ex. “A” hereto)
- Altman has never been to the Jacobson/Bleakley/Altman Property. (Altman Depo., p. 32:9-10.) (Ex. “A” hereto.)
- Neither Altman nor his firm has any plans, permits, designs or drawings pertaining to the construction project involving the Jacobson/Bleakley/Altman Property, and he did not see the pool construction as it was occurring on that property. (Altman Depo., p. 12:1-6 and p. 32:6-8.) (Ex. “A” hereto.)
- Altman has not done any investigation into the cause of the March 15, 2023 slope failure that is at issue in this case. (Altman Depo., p. 15:13-15.) (Ex. “A” hereto.)
- Altman suspects that he first became aware of the slope failure when his client (i.e., Jacobson and/or Bleakley) emailed or called him about it.

(Altman Depo., p. 31:12-18.) (Ex. "A" hereto.)

- Altman explained that if he received information regarding City permit records, "...that information, we're typically sending it out to the people that are really the true owners, if you will." (Altman Depo., p. 33:5-14 [emphasis added].) (Ex. "A" hereto.) In other words, Altman confirmed that he does not consider himself as Trustee to be the "true owner" of the Jacobson/Bleakley/Altman Property.
 - When asked if he keeps copies of property records for properties on which the Trustee is named as the owner, he responded that, "We would get those to the client, and toward – again, we'll call it true owner. We'll get it to the clients or professionals that were working on the project." (Altman Depo., p. 34:9-12 [emphasis added].) (Ex. "A" hereto.) Hence, in this case, his clients (i.e., Jacobson and/or Bleakley) are the true owners of the Jacobson/Bleakley/Altman Property.
 - Altman's role was limited to executing the design decisions and initiatives that he received from his clients. It was his clients, and not he, who were responsible for making the decisions about what they wanted done with the Jacobson/Bleakley/Altman Property. (Altman Depo., p. 56:12-19.) (Ex. "A" hereto.)
4. Based on the information obtained at Altman's deposition, Fairmount promptly filed form "Roe" amendments substituting Jacobson and Bleakley as Roes 1 and 2, respectively to Fairmount's First Amended Cross-Complaint (the "FACC"). This was done on February 17, 2026.
5. The following timeline sets forth the relevant procedural events that led up to the filing of Fairmount's renewed Motion for Leave to Amend:
- Initial Cross-Complaint: On April 15, 2024, Fairmount filed its initial Cross-Complaint against Altman.
 - First Amended Cross-Complaint: The parties entered into a stipulation and proposed Order to allow Fairmount to file its First Amended Cross-Complaint ("FACC"). The Court signed the proposed Order on October 21, 2025. On October 27, 2025, Fairmount filed its FACC pursuant to the stipulation and Order.

- Altman's Demurrer to First Amended Cross-Complaint: Altman filed a Demurrer to Fairmount's FACC, which he later withdrew on or about May 7, 2026.
- Roe Amendments: Based on the information obtained at Altman's February 2, 2026 deposition, Fairmount promptly filed form "Roe" amendments substituting Jacobson and Bleakley as Roes 1 and 2, respectively. This was done on February 17, 2026.
- Altman's Challenge to Roe Amendments: Cross-Defendants challenged Fairmount's use of the Roe amendment procedure to add Jacobson and Bleakley as Cross-Defendants. Although Fairmount disagreed with Cross-Defendants' position in this regard, Fairmount nevertheless opted to avoid the waste of Court resources by challenging the Demurrer and instead filed a Second Amended Cross-Complaint on May 22, 2026.
- Altman's Motion to Strike Second Amended Cross-Complaint: Altman filed a Motion to Strike Fairmount's Second Amended Cross-Complaint.
- August 10, 2026 Hearing and Court's Ruling: The hearing on Altman's Motion to Strike and Fairmount's original Motion for Leave to Amend took place on August 10, 2026. The Court denied Fairmount's Motion for Leave to file its Second Amended Cross-Complaint for failure to comply with California Rules of Court, Rule 3.1324. However, because the ground for denial was procedural and not substantive in nature, the Court ruled that Fairmount could file a renewed Motion for Leave to Amend. (See, 8/10/26 Minute Order, at p. 10 ["...the Court denies Fairmount 16's motion for leave to file the SAXC on procedural grounds, but without prejudice to Fairmount 16 filing a renewed motion for leave to amend"].)

6. Proposed Amended Pleading: A true and correct copy of Fairmount's proposed SAXC is attached as Exhibit "B" hereto.

7. Comparison Chart Showing Changes Made by Proposed SAXC: Attached hereto as Exhibit "C" is a chart which outlines the new allegations contained in the SAXC. The chart identifies by page, paragraph and line number where the new allegations appear in the SAXC and explains the reasons why the new allegations are necessary and proper. The substantive changes between the FACC and the SAXC consist of added allegations. The SAXC does not contain substantively deleted allegations (although some allegations in the FACC were moved to a different location in the SAXC).

8. Redline Version: A true and correct copy of a redline showing the differences between Fairmount's FACC and its proposed SAXC is attached hereto as Exhibit "D."

9. Effect of the Proposed Amendment: The effect of the proposed SAXC is as follows:

- a. The SAXC specifically names Jacobson and Bleakley as Cross-Defendants as opposed to simply having them substituted in as "Roe" cross-defendants
- b. The SAXC also adds new factual allegations specifically addressing Jacobson and Bleakley. It includes references and excerpts to the Altman deposition and ties in Jacobson's and Bleakley's dominion and control over the Altman/Jacobson/Bleakley Property.
- c. Finally, the SAXC adds a new claim for injunctive relief.

10. Why the Amendment is Necessary and Proper:

- a. Jacobson and Bleakley initially insisted that Altman was the true owner of the Altman/Jacobson/Bleakley Property and that they, by contrast, did not exercise dominion or control over the property. (See, e.g., Demurrer by Jacobson and Bleakley to Amended Cross-Complaint at p. 10:3-7 ["There is no allegation that Jacobson or Bleakley hold any legal or equitable interest in the 50 Haldeman property...or that either one exercised any form of dominion or control over 50 Haldeman Road during the 2016-2019 construction period or at any other time thereafter"].) It was not until Altman revealed at his deposition that his role was limited to administrative/bookkeeping types of issues and that Jacobson and Bleakley were the "true owners" who made all of the significant decisions concerning the construction project that Jacobson and Bleakley were forced to admit that the Big Norm Trust was merely a vehicle by which they could conceal their identities. (See, Ex. "A" hereto [Altman Depo., p. 11:11-16; p. 51:21-23; p. 51:25-52:3; p. 11:17-20; p. 12:15-20; p. 33:5-14; p. 34:9-12; and p. 56:12- 19].) Altman conceded at his deposition that Jacobson and Bleakley created the Big Norm Trust "for privacy purposes," meaning that they wanted to keep their names off public records. Altman confirmed that, "In this case, for purposes of privacy, my name sits on public records and documents so that our clients' name is not on it." (Ex. "A" hereto [Altman

Depo., p. 11:11-16 and p. 51:21-23].) The proposed amendments are necessary in order to ensure that Jacobson and Bleakley are (by virtue of their ownership, control, decision-making authority, and responsibility for the construction project which ultimately led to the disastrous slope failure) held legally responsible for the damages that they caused to Fairmount.

b. The new request for injunctive relief is likewise necessary.

Cross-Defendants previously sought (and were granted) a trial continuance based on their representation that a continuance was necessary so that they could take steps to implement the necessary repairs to the slope. (See, Ex. “1” to Req. for Jud. Not. [Cross-Defendants’ Ex Parte App. to Cont. Trial]; and Ex. “2” to Req. for Jud. Not. [Court’s 3/18/26 Minute Order confirming, “...Altman argues that it became clear at the February 2026 mediation that additional hillside testing, development of large-scale slope side stability repair options, City permitting and hard bids still need to be completed....”]) In their Ex Parte Application to Continue the Trial Date, Cross-Defendants told the Court that they needed additional time in order to address “essential hillside testing, development of large-scale slope side stability repair options, City permitting, and hard bids.” (Ex. “1” to Req. for Jud. Not., at p. 4:15-17.) Cross-Defendants attached as Exhibit “C” to their Ex Parte Application to Continue Trial a letter from the mediator (James A. Roberts, Esq.) dated February 11, 2026 which set forth the “game plan” pursuant to which Cross-Defendants were to take steps toward the necessary repairs. (Ex. “1” to Req. for Jud. Not.) To date, however, Cross-Defendants have not provided my office with any indication that they have actually undertaken the steps toward repair. For instance, Cross-Defendants have not provided my office with any plans, permits, or proposed testing protocol. It has therefore become increasingly apparent that injunctive relief is necessary in order to compel Cross-Defendants to implement the essential repairs which are needed to stabilize the failed slope. As explained in the SAXC, the harm incurred by Fairmount cannot be remedied by money damages alone and because without an injunction, Fairmount is concerned that the Cross-Defendants will, among other things: (a) continue to refuse to abate the nuisance that they caused; and (b) will continue to cause a worsening of the slope/soil instability which led to the landslide in the first instance.

11. When the Facts Giving Rise to the Amended Allegations Were

Discovered: The facts giving rise to the need for the amendments were discovered in conjunction with the February 2, 2026 deposition of Defendant and Cross-Defendant Howard Altman. Key information regarding Cross-Defendants

Jacobson and Bleakley was gleaned from Altman's deposition, as referenced in Paragraph 3 of this Declaration and as shown by the deposition excerpts attached collectively as Exhibit "A" hereto.

12. The Reasons Why the Request for Amendment Was Not Made Earlier: As noted above, the deposition of Altman was taken on February 2, 2026. Based on the information obtained at Altman's deposition, Fairmount promptly filed form "Roe" amendments substituting Jacobson and Bleakley as Roes 1 and 2, respectively. This was done on February 17, 2026. Altman, Jacobson and Bleakley challenged Fairmount's use of the Roe amendment procedure, which resulted in Fairmount filing its initial Second Amended Cross-Complaint. Cross-Defendants filed a motion to strike that pleading, which the Court granted on procedural grounds. On August 10, 2026, the Court issued a Minute Order confirming that Fairmount had the right to renew its Motion for Leave. This renewed Motion is therefore timely made.

13. Fairmount's SAXC does not constitute an "unfair surprise" to Jacobson or Bleakley for multiple reasons. Both Jacobson and Bleakley were named as Roe defendants back in February. Therefore, they have both been on notice of the nature of the claims and the allegations against them since early this year. Moreover, based on the testimony of Altman, both know they are the true owners of the property of which Altman serves as trustee. The only new claim contained in the SAXC is one for injunctive relief, and that request for injunctive relief is predicated upon the same factual allegations that were included in the FACC so there is no surprise as to any fact allegation in the SAXC. Finally, trial was vacated to allow remedying the problem(s) on the Bleakley/Jacobson property meaning that there is no prejudice whatsoever to either of them as they have ample time to prepare for a trial that has not yet been set.

(Kehoe

Decl. ¶¶ 2-13.)

Therefore, the Kehoe Declaration adequately demonstrates all proposed changes to the Cross-Complaint. Further, the Kehoe Declaration adequately demonstrates that the amendment adds Jacobson and Bleakley as Cross-Defendants, new allegations pertaining to Jacobson and Bleakley, and adds a claim for injunctive relief, pursuant to information gleaned at the February 2, 2026 Altman deposition; and the request was not made earlier, because the parties were working out Cross-Defendants' challenges to

the Roe amendments and the failed initial filing of the SAXC.

In opposition, Cross-Defendants argue Fairmount unreasonably waited years after learning about the underlying facts before attempting to amend its cross-complaint. Specifically, Cross-Defendants point out that the proposed SAXC alleges that in June 2017, Jacobson personally communicated with Fairmount concerning “our property,” “our back yard,” and “our project[.]” (SAXC ¶¶ 21-22.)

Notwithstanding, it is clear that this issue did not crystallize until the February Altman Deposition.

Therefore, the Court does not find Fairmount unreasonably delayed merely because it had some reason to suspect Jacobson’s involvement in June 2017.

Cross-Defendants also argue that the proposed amendments are substantively improper because the relation-back doctrine does not apply, making the claims against Jacobson and Bleakley untimely, and the new injunctive remedy is duplicative of relief already before the Court.

But Cross-Defendants’ substantive arguments are not generally considered on a motion for leave to amend. (See Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 [“the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings”].)

CONCLUSION AND ORDER

Finding Fairmount has satisfied the procedural and substantive requirements for leave to amend, the Court grants Fairmount’s motion for leave to amend the cross-complaint, and orders Fairmount to file and serve the SAXC on or before October 2, 2026.

Further, the Court will enter the proposed Order lodged on August 19, 2026 in conformance with the ruling.

Fairmount shall also provide notice of the Court’s ruling/Order, and file the notice with a proof of service forthwith.

DATED: September 22, 2026 ____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court